A federal judge in Florida has tossed a revised version of President Donald Trump's $10 billion defamation suit against The Wall Street Journal over a story about a birthday card he allegedly sent Jeffrey Epstein more than two decades ago.

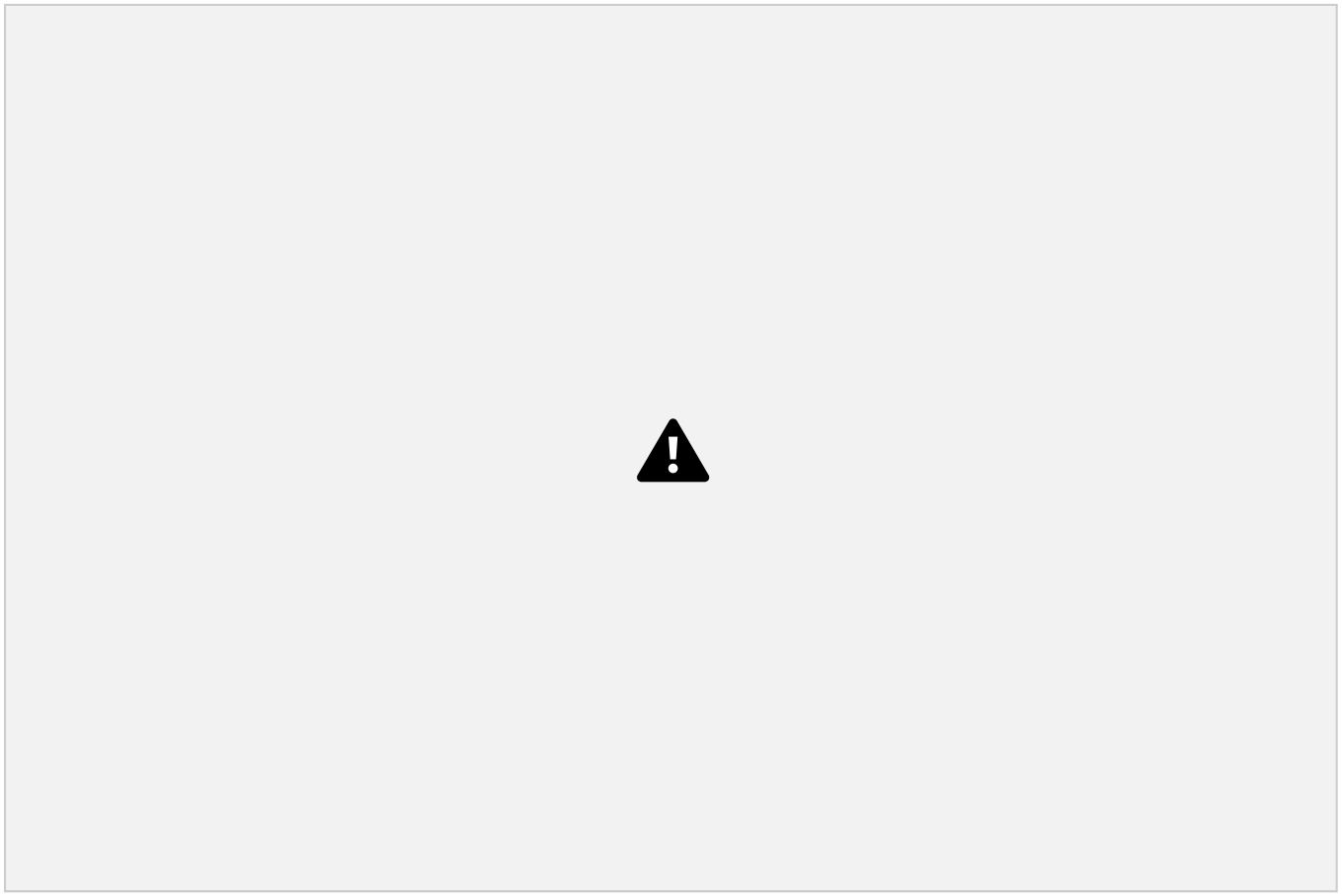
U.S. District Judge Darrin Gayles found Trump's amended suit suffered from the same fatal flaw as his first attempt — it fell far short of the high legal bar to show the paper had published the story with "actual malice."

"As President Trump has not plausibly alleged that each Defendant made defamatory statements with actual malice, the Amended Complaint must be dismissed. And because this is President Trump's second attempt to allege his claims, the Court finds that dismissal with prejudice is appropriate," the judge wrote.

Trump first sued the paper last July, shortly after the Journal published a story about a birthday book that Ghislaine Maxwell had assembled for Epstein's 50th birthday in 2003. The book appeared to include a card from Trump, who had been friends with Epstein around that time.

The card contained a hand-drawn outline of a naked woman with what appeared to be Trump's first name signed in the pubic area. It included a typewritten note depicting an imaginary conversation with Epstein, who would later be charged with sex trafficking.

Trump denied having anything to do with the card, and his suit accused the paper of having made it up and that no such note existed.



Jeffrey Epstein in Cambridge, Mass., in 2004.Rick Friedman / Corbis via Getty Images file

Epstein's estate later released a copy of a card matching the Journal's description. Trump and the White House maintain the document is a fake.

Trump's suit alleged the writers of the article "falsely represent as fact that President Trump drew the naked woman's breasts and signed his name 'Donald' below her waist, 'mimicking pubic hair,'" and that the article caused him "overwhelming financial and reputational harm."

Trump's suit also criticized the paper for not publishing an image of the card in the initial story, saying that shows "no authentic letter or drawing exists" — even though the House Oversight Committee publicly released the card after getting it from the Epstein estate.

The suit says the Journal should have known the story was bogus because Trump said it was not true. It also chided the paper for failing to interview Epstein co-conspirator Maxwell, who's serving 20 years in prison on sex trafficking charges. The story said Journal reporters wrote her a letter asking for an interview and included a comment from her attorney.

The paper's attorneys argued that like the original suit, Trump's revised suit came "nowhere close" to demonstrating the paper acted with actual malice, in which "the false statement was made with knowledge that it was false or with reckless disregard of whether it was false or not."

Despite Trump's claim the paper failed to properly investigate the card before publishing the story, "the Article itself established that the Journal not only investigated" but also "informed readers that President Trump decried the Letter as a fake and denied writing it," the paper said in its motion to dismiss the suit.

Further, the attorneys argued, alleging that someone sent another person a birthday card is not defamatory.

"There is nothing inherently defamatory about sending a bawdy letter to a friend," the attorneys wrote, and the article "emphasizes that the Birthday Book was created before Epstein was first arrested" and "makes clear that President Trump's friendship with Epstein ended years before Epstein was charged with sex crimes."

The attorneys also contended the suit should be dismissed because the public release of the card shows the story was "substantially true."

In an interview last year with then-Deputy Attorney General Todd Blanche, Maxwell acknowledged assembling the birthday book but said she could not remember whether Trump contributed to it.

The White House maintains the signature is not Trump's and that it looks different from his distinctive full signature. Democrats compiled a number of documents where Trump signed just his first name over the year, and the signatures appear very similar to the one on the card.